

SENATE BILL 2332

By Gardenhire

AN ACT to amend Tennessee Code Annotated, Title 49,
relative to public charter schools.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 49-13-108(b)(5)(E), is amended by deleting the subdivision and substituting:

(E) Notwithstanding subdivision (b)(5)(D), a public charter school authorized by the commission, and the local board of education of the LEA in which the public charter school is located, may, within thirty (30) calendar days of the public charter school's authorization, mutually agree in writing that the local board of education will be the authorizer and the LEA for the public charter school, and the local board of education shall assume the rights and responsibilities of the charter agreement. The charter agreement must be filed with the commission in a manner prescribed by the commission. This subdivision (b)(5)(E) does not apply to a public charter school that has had its charter agreement renewed on appeal by the commission; and

SECTION 2. Tennessee Code Annotated, Section 49-13-110(b)(1), is amended by deleting "A charter agreement" and substituting "An initial charter agreement".

SECTION 3. Tennessee Code Annotated, Section 49-13-110(c), is amended by deleting the subsection and substituting:

(c)

(1) If a public charter school renewal application is approved by a local board of education, then the term of the renewed charter agreement must be for ten (10) academic years.

(2) If a public charter school renewal application is approved by the commission, then the term of the renewed charter agreement must be for a term of no less than five (5) academic years, but no more than ten (10) academic years, as determined by resolution of the commission.

SECTION 4. Tennessee Code Annotated, Section 49-13-121(g), is amended by deleting the subsection and substituting:

(g)

(1) If a public charter school renewal application is approved by a local board of education, then the term of the renewed charter agreement must be for ten (10) academic years.

(2) If a public charter school renewal application is approved by the commission, then the term of the renewed charter agreement must be for a term of no less than five (5) academic years, but no more than ten (10) academic years, as determined by resolution of the commission.

SECTION 5. Tennessee Code Annotated, Section 49-13-121(f)(3), is amended by deleting "Notwithstanding subsection (g), the first sentence of § 49-13-110(b), and § 49-13-110(c), if" and substituting "If".

SECTION 6. Tennessee Code Annotated, Section 49-13-121(l), is amended by deleting "Notwithstanding subsection (g), the first sentence of § 49-13-110(b), and § 49-13-110(c), if" and substituting "If".

SECTION 7. This act takes effect upon becoming a law, the public welfare requiring it.